

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 2, Honorable Amber Rosen, Presiding

Audrey Nakamoto, Courtroom Clerk

191 North First Street, San Jose, CA 95113

Telephone 408.882-2120

PROBATE LAW AND MOTION TENTATIVE RULINGS

LINE 3	25PR200044	<i>Conservatorship of Anthonio Meza Moreno</i>	Motion is continued to July 30, 2026 at 10 am for failure to give timely notice and failure to serve a copy of the petition. Moving party is required to reserve petition and notice of hearing for new date.
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Case Name: IN THE MATTER OF THE KAIS BYPASS TRUST, established under the KAIS FAMILY TRUST dated March 2, 1994

Case No.: 25PR200331

INTRODUCTION

Petitioner Deborah Settlemeyer initiated this case by filing a petition to remove Maria Kais (“Maria”) as trustee of the Kais Bypass Trust, which was created under the terms of the Kais Family Trust dated March 2, 1994.¹ After multiple amendments, the currently operative version of the petition is the third amended petition (“TAP”), filed May 18, 2026, which is brought by both Ms. Settlemeyer and Samuel Kais, Jr. (“Sam, Jr.”) In its current iteration, the TAP alleges that Maria and Samuel Kais, Sr. executed the Kais Family Trust and, upon Samuel Kais, Sr.’s death, the Bypass Trust was created. In 2025, Maria, then 90 years of age and in a state of cognitive decline, transferred a Bypass Trust asset, real property near Lake Tahoe (“the Lake Tahoe Property”), to Thomas Kais (“Tom”) and his girlfriend for well below market value, ostensibly due to lack her lack of liquidity. The TAP specifically alleges that the settlors had intended to keep the Lake Tahoe Property in the family and that Maria signed a power of attorney in favor of Samuel Kais, Jr. (“Sam, Jr.”), giving him the authority to act to preserve the Lake Tahoe Property. (TAP, ¶ 8.) The TAP asserts that the power of attorney was irrevocable because it was coupled with an interest, namely a home equity line of credit (“HELOC”) in the amount of \$1,000,000, which Sam, Jr. and his wife, non-party Elizabeth Kais (“Elizabeth”) signed as co-obligors at Maria’s request. (*Ibid.*) The HELOC is secured by another real property, also used to fund the Bypass Trust (“the San Jose Property”). (*Ibid.*)

In her opposition to the second amended petition,² Maria asserted that she decided to sell the Lake Tahoe Property due to lack of liquidity and the financial strain of the HELOC on the San Jose Property. (Opposition to Second Amended Petition, filed March 27, 2026, ¶ 5.)

Currently before the court are a competing motion to compel and motion to quash both related to a subpoena served by Tom directed to JPMorgan Chase Bank, N.A. (“Chase”) seeking records relating to the HELOC. Tom has filed the motion to compel because non-party Elizabeth served an objection to the subpoena. Sam, Jr. has opposed the motion to compel and Tom has filed a reply. Sam, Jr. filed the motion to quash, which Tom has opposed and Sam, Jr. has filed a reply.

DISCUSSION

Because the motions to compel and quash concern the same subpoena and the same privacy and relevance concerns, the court will discuss them together.

I. Legal Standard

¹ Because several of the individuals involved in this case share the same last name, the court will refer to them by their first names. No disrespect is intended.

² The TAP is currently unopposed.